

23STCV30867 23STCV30867

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C07%2F21%2F2026

Source SHA-256: 7414d27fd00d357f6a8979f40df51957fdf012d0ab4226941b9bf2ad9b42c061

Case Number: 23STCV30867 Hearing Date: July 21, 2026 Dept: F46

Dept. F-46

Hearing Date: July 21, 2026

Case Number: 23STCV30867

PLAINTIFF'S MOTIONS TO COMPEL DEFENDANT'S FURTHER
RESPONSES TO (1) DEMAND FOR PRODUCTION OF DOCUMENTS, SET ONE, AND (2) FORM
INTERROGATORIES, SET ONE, AND FOR MONETARY SANCTIONS

Motions filed on May 22, 2026.

MOVING PARTY: Plaintiff Victor Silva

RESPONDING PARTY: Defendant Emma Nunez

NOTICE: OK.

RELIEF REQUESTED: Orders compelling further verified
responses and production as to Demand For Production of Documents, Set One,
Nos. 1 through 34, further verified responses to Form Interrogatory Nos. 15.1
and 17.1, and monetary sanctions.

RULING: The motion concerning Demand For Production of
Documents, Set One, is granted in part. The motion concerning Form
Interrogatories, Set One, is continued to July 31, 2026, at 8:30 a.m. Monetary
sanctions are awarded as stated below.

BACKGROUND

Plaintiff Victor Silva filed this premises liability action on December 19, 2023. Defendant Emma Nunez filed an Answer on June 26, 2025. Trial is set for August 17, 2026.

Plaintiff filed the instant motions on May 22, 2026. Defendant opposed the motion concerning the Demand For Production of Documents on June 8, 2026 and opposed the motion concerning the Form Interrogatories on July 1, 2026. No timely replies were filed.

LEGAL STANDARD

A party may move to compel further interrogatory responses when an answer is evasive or incomplete. Interrogatories must be answered separately and under oath, and each answer must be as complete and straightforward as the information reasonably available permits. (Code Civ. Proc., §§ 2030.210, 2030.220, 2030.300, subd. (a).)

A party may move to compel further responses to an inspection demand where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection lacks merit or is too general. The moving party must set forth specific facts showing good cause for the discovery sought. (Code Civ. Proc., § 2031.310, subds. (a), (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

A response to an inspection demand must address each demand separately and must bear the same number and appear in the same sequence as the corresponding demand. (Code Civ. Proc., § 2031.210, subds. (a), (c).) A statement of compliance must state whether compliance will be in whole or in part and whether all responsive documents within the responding party's possession, custody, or control will be included in the production. (Id., § 2031.220.) A representation of inability to comply must affirm that a diligent search and reasonable inquiry were made, specify the reason for the inability to comply, and identify any person or organization known or believed to possess responsive documents. (Id., § 2031.230.) Documents produced must be identified with the specific demand to which they respond. (Id., § 2031.280, subd. (a).)

DISCUSSION

Demand For Production of Documents, Set One

Plaintiff has shown good cause. The demands seek leases, communications, maintenance records, photographs, repair and inspection records, rent records, management agreements, and other documents concerning the condition, repair, and management of the subject property. Those matters bear directly on control, notice, the existence and duration of the alleged dangerous condition, repairs, causation, and Defendant's defenses. (Code Civ. Proc., §§ 2017.010, 2031.310, subd. (b)(1); Pl. RPD Mot., Ex. 1, Demand Nos. 1-34.)

The Court relies on Defendant's February 17, 2026 responses because Defendant's later amended responses were not verified. The Court refers below to the numbering in Plaintiff's original demands. Defendant's response numbers shift after Demand No. 13 and use the number 34 twice.

As to Demand Nos. 1, 3 through 6, 14, 16 through 22, 27, 31, and 33, Defendant referred to a lease, photographs, attachments, electronic links, a flash drive, invoices, receipts, or other produced materials and incorporated the supplemental response to Demand No. 1. That incorporated response (Demand No. 1) states that Defendant directed Sergio Nunez and counsel to conduct a diligent search, is producing all responsive, nonprivileged documents located, will include documents within her control or has already produced them, and is not asserting objections. The same response to Demand No. 1 also states, however, that Defendant does not know whether documents Sergio Nunez may once have possessed exist or ever existed, that additional documents will be produced if later located or obtained, and that Defendant cannot determine which demand corresponds to each produced document. Defendant instead directs Plaintiff to categorize the production.

Read as a whole, the responses do not clearly state, as to each demand, whether Defendant will comply in whole or in part or whether all responsive documents within her possession, custody, or control are included in the production. They also do not consistently identify the documents produced with the demands to which they respond. The response to Demand No. 31 is additionally unclear because the demand seeks management agreements, while Defendant responded only, "ORIGINAL LEASE, see attached."

Defendant characterizes these deficiencies as technical and

relies on *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762. *St. Mary* addressed a motion to deem requests for admission admitted and held only that a court evaluating substantial compliance in that posture must assess the proposed response as a whole rather than parsing individual answers, in part because request-specific scrutiny belongs in a motion to compel further responses. (*Id.* at pp. 779-780; Code Civ. Proc., § 2033.290.) The case thus supports, rather than undermines, the demand-by-demand review sought here through the inspection-demand analog of that procedure. (Code Civ. Proc., § 2031.310.) And the deviations *St. Mary* excused were matters of form. Defendant's are not. Substantial compliance requires "actual compliance in respect to the substance essential to every reasonable objective of the statute" (*St. Mary*, *supra*, at p. 779), and Defendant's responses fall short. They remain ambiguous as to whether she is complying or is unable to comply, qualify certain answers of "None," leave unresolved promises of future production, and expressly require Plaintiff to determine which produced documents correspond to which demands.

As to Demand Nos. 2, 7 through 13, 15, 23 through 26, 28, and 34, Defendant responded "None" or words to that effect and incorporated the response to Demand No. 1. Defendant argues that "None" means the documents do not exist. The operative responses do not clearly say so. The incorporated response to Demand No. 1 states that Defendant does not know whether certain documents exist or ever existed and that documents responsive to categories presently answered "None" will be produced if later located or obtained. The responses therefore do not state the reason Defendant is unable to comply with each demand or identify any person or organization known or believed to possess responsive documents. (Code Civ. Proc., § 2031.230.)

Demand No. 34 is additionally incomplete. The demand seeks all notices to enter served during the specified period, but Defendant responded only that there were none "concerning the alleged slip and fall." That qualification does not address whether other responsive notices exist. Defendant's document list identifies a "Notice to enter for repairs 5-11-19," which appears facially responsive.

As to Demand Nos. 29 and 30, Defendant stated that some records had been produced, that additional records were being obtained, and that documents were being sought from former counsel. The requested extensions expired without verified further responses stating whether the documents were produced or whether Defendant remained unable to comply after a diligent search

and reasonable inquiry.

Defendant argues that the discovery dispute was resolved because counsel agreed Defendant would execute an authorization permitting Plaintiff to subpoena former counsel's records. The opposition contains only a proposed stipulation and authorization with blank dates and no executed signature by Defendant. The record does not show that the authorization was executed, that a subpoena was served, or that the records were obtained. The motion is therefore not moot as to Demand Nos. 29 and 30.

Defendant also argues that Plaintiff has not identified a particular document Defendant possesses but refuses to produce. On a motion to compel further, Plaintiff was not required to identify a particular document Defendant possesses but refuses to produce. Relief is available when a statement of compliance is incomplete or a representation of inability to comply is inadequate, incomplete, or evasive. (Code Civ. Proc., § 2031.310, subd. (a).)

Although Plaintiff's separate statement lists Demand No. 32 in its introduction, the body omits that demand and proceeds from Demand No. 31 to Demand No. 33. Because the separate statement does not reproduce Demand No. 32, Defendant's response, and the reasons for compelling a further response, the motion is denied as to that demand. (Cal. Rules of Court, rule 3.1345(c).)

Accordingly, Plaintiff's motion is granted as to Demand Nos. 1 through 31, 33, and 34, and denied as to Demand No. 32.

Defendant shall serve one set of verified further responses to the demands for which the motion is granted. The further responses shall bear the same numbers and appear in the same sequence as Plaintiff's original demands. Each demand shall be answered separately and shall state clearly whether Defendant will comply in whole or in part or is unable to comply. (Code Civ. Proc., §§ 2031.210, subds. (a), (c), 2031.250, subd. (a).)

For each statement of compliance, Defendant shall state whether production will be allowed in whole or in part and whether all responsive, nonprivileged documents within her possession, custody, or control will be included. For each representation of inability to comply, Defendant shall affirm that a diligent search and reasonable inquiry were made, state the reason for the inability to comply, and identify any person or organization known or believed to possess responsive documents. (Code Civ. Proc., §§ 2031.220,

2031.230.)

Defendant shall identify the documents produced with the specific demand to which they respond. Previously produced documents shall be identified by Bates number, electronic file name, or another reasonably specific identifier. Any responsive documents not previously produced shall be produced concurrently with the further responses. (Code Civ. Proc., § 2031.280, subd. (a).)

Defendant may not rely on an incorporated general response in place of the separate, demand-specific statements required by the Discovery Act.

Form Interrogatories, Set One

After Plaintiff filed the motion, Defendant served updated responses to Form Interrogatory Nos. 15.1 and 17.1 on June 18, 2026. (Def. FROG Opp., Ex. G.) The record now contains multiple response sets, some verified and some unverified, and Plaintiff filed no reply identifying which disputes remain. The Court therefore continues the motion to permit a focused meet and confer and joint statement identifying the operative responses and any remaining disputes.

Sanctions

The Court shall impose monetary sanctions against a party who unsuccessfully opposes a motion to compel further responses to inspection demands unless the Court finds that the party acted with substantial justification or that other circumstances make sanctions unjust. (Code Civ. Proc., § 2031.310, subd. (h).)

Plaintiff substantially prevailed on the motion concerning the Demand For Production of Documents. Defendant's opposition was not substantially justified. The operative responses did not clearly state, as to each demand, whether Defendant would comply or was unable to comply; required Plaintiff to categorize the documents produced; contained qualified responses of "None"; and included unresolved promises of future production. Although Plaintiff identified these deficiencies during the meet-and-confer process, Defendant did not serve verified, code-compliant further responses before the motion was filed.

Plaintiff's counsel seeks sanctions at an hourly rate of \$750. The Court finds that rate excessive and reduces it to \$500. The Court finds two hours reasonably incurred, one hour to prepare the motion and one hour to prepare for and appear at the hearing, and allows the \$60 filing fee, for a total award of \$1,060. (Rodriguez Decl. ¶¶ 12-13.)

Plaintiff's request for monetary sanctions concerning the Demand For Production of Documents motion is GRANTED in the amount of \$1,060 against Defendant Emma Nunez. Defendant's competing request for monetary sanctions is DENIED.

The Court reserves the parties' requests for sanctions concerning the Form Interrogatory motion pending determination of that motion.

CONCLUSION

Plaintiff's Motion to Compel Defendant's Further Responses to Demand For Production of Documents, Set One, is GRANTED as to Demand Nos. 1 through 31, 33, and 34. The motion is DENIED as to Demand No. 32.

No later than July 27, 2026, Defendant shall serve verified, separately stated, and correctly numbered further responses as detailed above. Defendant shall identify the documents produced in response to each demand and concurrently produce any responsive documents not previously produced.

Plaintiff's Motion to Compel Defendant's Further Responses to Form Interrogatories, Set One, is CONTINUED to July 31, 2026, at 8:30 a.m. in Department F-46.

No later than July 22, 2026, counsel shall meet and confer directly by telephone, videoconference, or in person, not by email or written correspondence, concerning Form Interrogatory Nos. 15.1 and 17.1.

No later than July 28, 2026, the parties shall file one joint statement, not exceeding ten pages, identifying only the disputes that remain. Any matter not included in the joint statement will be deemed resolved or withdrawn. No other filing may be submitted absent leave of Court.

Defendant Emma Nunez shall pay Plaintiff monetary sanctions

of \$1,060 no later than August 4, 2026. Defendant's competing request for sanctions is DENIED.

The Court reserves all sanctions requests concerning the Form Interrogatory motion.